

25STCV11399 25STCV11399

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV11399 Hearing Date: August 6, 2026 Dept: 734

The following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:06 PM on August 5, 2026.

Rule of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No later than 4:00 p.m. on August 5, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff tenants alleges that Defendant landlords failed to remediate uninhabitable conditions at the property leased by Plaintiffs.

Defendant Single Room Occupancy Housing Corporation moves to strike portions of the First Amended Complaint.

TENTATIVE RULING

Defendant Single Room Occupancy Housing Corporation's motion to strike the requests for attorneys fees from the First Amended Complaint is DENIED in its entirety.

Defendant is to answer the First Amended Complaint within 10 days.

ANALYSIS

Motion To Strike

Meet and Confer

The form Declaration of Andre L Arzoo reflects that Defendant's counsel satisfied the meet and confer requirement set forth in Code Civ. Proc. § 435.5.

Discussion

Defendant Single Room Occupancy Housing Corporation moves to strike portions of the First Amended Complaint regarding attorney's fees. "[A]s a general rule, attorney fees are not recoverable as costs unless they are authorized by statute or agreement." (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (2007) 147 Cal.App.4th 424, 429.)

1. ¶ 40, 15:11-13 – "As a proximate cause of the Defendant's breach, Plaintiffs suffered damages in an amount to be proven at trial. Subject to the terms of Plaintiffs' leases, Plaintiffs are entitled to an award of attorney's fees and costs."

Defendant argues that the 1AC asserts a claim for attorney fees pursuant to Plaintiffs' lease agreements, yet fails to provide contractual language despite the Court's Order, issued on January 7, 2026. (Arzoo Decl., ¶¶ 2-3.)

Plaintiffs argue that landlords have an obligation under Cal. Civil Code 1962(a)(4) to hold onto their tenant's lease. As stated by the courts, a motion to strike attorney fees pursuant to a contract is not appropriate if the party has not had a full opportunity to determine, through discovery, whether the basis for recovery of attorney fees exists. See Camenisch v. Superior Ct. (1996) 44 Cal.App.4th 1689, 1699 (denying Defendants' contention that attorney fees be stricken because the Plaintiff did not produce a contract on the basis that discovery was still ongoing).

Defendant argues that Plaintiffs fail to comply with the Minute Order of January 7, 2026, for failure to plead alleged contractual terms (a lease provision) entitling them to attorney fees. (Supp. Arzoo Decl., ¶¶ 2-4.) However, these arguments are in bad faith, as Plaintiffs and their counsel are informed and aware that SRO is a non-profit, that no SRO leases provide for attorney fees, and that this is a common practice for non-profits that provide subsidized housing in Los Angeles. (Supp. Arzoo Decl., ¶ 5.) Plaintiffs have again failed to plead contractual terms and so their claims must be stricken.

Court's analysis:

Defendant's argument that non of SRO's leases have attorney's fees clauses relies on evidence extrinsic to the 1AC. While this may prove to be true, Plaintiffs will be given an opportunity to conduct discovery to verify this. There is no harm in permitting the attorney's fees request based on a lease provision to remain in the 1AC pending discovery. If no such clause exists, then no such clause can support an eventual request for attorney's fees if Plaintiffs prevail at trial.

"[E]ven though the complaint did not allege a contract allowing recovery of attorney fees by the prevailing party, the court was not required to strike the prayer before plaintiffs had a full opportunity to determine, through discovery, whether a basis for recovery existed." (Camenisch v. Superior Court (1996)44 Cal. App. 4th 1689, 1691.)

The motion to strike the request for attorney's fees at ¶ 40, 15:11-13 is DENIED.

2. ¶ 50, 17:26-18:1 - "Subject to the terms of Plaintiffs' lease and/or applicable law, Plaintiffs are entitled to an award of attorney's fees and costs. Plaintiffs are entitled to reasonable attorney fees and costs pursuant to Cal. Civil Code 1942.4(b)(2) and Los Angeles Municipal Code 45.35(B)."

Re: Lease

Court's analysis:

See discussion above at 1.

Re: Civil Code § 1942.4(b)(2).

Defendant argues that Plaintiffs are seeking attorney fees pursuant to Civil Code § 1942.4. However, a violation does not occur unless all four conditions are met: (1) "the dwelling substantially lacks any of the affirmative characteristics in Section 1941.1," such as effective waterproofing and weather protection of roof and exterior walls and plumbing or gas facilities maintained in good working order; (2) "[a] public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions"; (3) "[t]he conditions have existed and have not been abated 35 days beyond the date of service of the notice ... and the delay is without good cause"; and (4) "the conditions were not caused by an act or omission of the tenant". (Emphasis added; Civil Code § 1942.4(a).)

Defendant argues that the 1AC fails to allege a violation of Civil Code § 1942.4 relative to their unit, as opposed to common areas. The only violation alleged as to Plaintiffs' units is a single instance for "wall damage" in BATTLE's unit. (¶ 17, 8:5-6.) The 1AC fails to allege or provide substantive facts of any violation or citation of HALLIBURTON's unit. In addition, throughout the 1AC, no substantive facts are pleaded regarding any other alleged conditions or violations in Plaintiffs' own individual dwellings. (¶¶ 15-25.) Nor are there facts pled to support Plaintiffs' claim of having provided notice to SRO, if any, it is impossible for either this Court or SRO to ascertain when the 35-day period to abate was triggered, if at all. Moreover, there is a likelihood that tenants and their guests either contributed to or created the issues complained about.

Plaintiffs argue that the 1AC alleges that SRO received citations regarding the Subject Property, including common area and building-wide violations, that Defendants enabled these substandard conditions throughout the building, that Defendants failed to abate cited code violations, and that Defendants demanded and collected rent from Plaintiffs despite the Subject Property's substandard conditions. The entire context of Plaintiffs' complaint demonstrates SRO's deficient management, disregard for tenants, and failure to comply with direct city orders as to substandard conditions under their direct control. Plaintiffs have clearly alleged that SRO enabled, caused, and increased code violations at the premises. Plaintiffs' FAC directly cites policies that enabled these conditions, such as SRO's failure to comply with California Code of Regulations, Title 25, § 42, and safety issues that are entirely under SRO's control, such as the building's defective Fire Annunciator Panel. SRO is also an experienced operator of low-income residential buildings that voluntarily made an agreement with the city of Los Angeles to take on Section 8 tenants at the premises.

Court's analysis:

The Court notes that the fourth cause of action is for violation of Civil Code § 1942.4. However, whether or not conditions of the common areas were caused by wear and tear or other activities of the tenants is a factual issue outside the scope of this motion to strike.

Civ. Proc. Code, § 437 provides:

(a) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.

(b) Where the motion to strike is based on matter of which the court may take judicial notice pursuant to Section 452 or 453 of the Evidence Code, such matter shall be specified in the notice of motion, or in the supporting points and authorities, except

as the court may otherwise permit.

Indeed, the gist of Defendant's argument is that Plaintiffs have failed to plead facts sufficient to constitute a violation of Civil Code § 1942.4. This is the function of a demurrer (or motion for judgment on the pleadings) not a motion to strike.

[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer. A motion to strike does not lie to attack a complaint for insufficiency of allegations to justify relief; that is a ground for general demurrer. (Citation omitted.)

(Pierson v. Sharp Mem'l Hosp. (1989) 216 Cal.App.3d 340, 342-343.)

In this regard, the Court does not find that Defendant has presented a sufficient reason to strike the request for attorney's fees pursuant to Civil Code § 1942.4.

Re: LAMC § 45.35(B).

Defendant argues that Plaintiffs fail to provide substantive facts to support their claims for attorney fees under the Anti-Tenant Harassment Ordinance. Expressly, the former provision of Municipal Code 45.35 in Ordinance 187109 provides that "A civil proceeding ... initiated under this article alleging any violation of Section 45.33 (2) may be commenced only after the tenant provides written notice to the landlord of the alleged violation, and the landlord fails to remedy the repair or maintenance issue within a reasonable period of time." [Emphasis added.] However, the 1AC only provides a conclusory statement that "Plaintiffs complained about the above conditions to the Defendants..." (§ 26.) Plaintiffs provide no substantive facts, nonetheless, the dates they provided notice, how and to whom they provided notice, or even for what complaints or conditions notice was provided. Plaintiffs merely alleging conclusory statements are not only insufficient but, in context of the only facts provided in their 1AC, are improperly misleading. Plaintiffs allege at least 12 paragraphs of conditions or conduct from 2021 to 2024 yet fail to provide any facts whatsoever to support their claim of even one instance of providing notice. (§§ 14 25.) Given the extent of their allegations, Plaintiffs should have been able to provide such facts, if any. Therefore, Plaintiffs are not entitled to attorney fees under Section 45.35, given their failure to even allege, nonetheless, their failure to provide any substantive facts whatsoever to support, that they properly commenced this action under the conditions required by the Municipal Code.

Court's analysis:

The only cause of action seemingly based upon a violation of LAMC § 45.35 is the sixth cause of action for tenant harassment.

77. The Defendants' actions were willful, directed at Plaintiffs, would create an apprehension of harm in a reasonable person, and served no legitimate purpose. As such, Defendants are liable for tenant harassment under L.A.M.C. Sec. 45.33 and Los Angeles County Code 8.52.130.

In this regard, Defendant's argument that Plaintiffs have not pled the conditions required by the Municipal Code goes to whether Plaintiffs plead facts sufficient to constitute a cause of action for violation of the LAMC § 45.35 which is the function of a demurrer (or motion for judgment on the pleadings), not a motion to strike.

Conclusion

The motion to strike the request for attorney's fees at ¶ 50, 17:26-18:1 is DENIED.

3. ¶ 64, 21:5-6 - "Plaintiffs are entitled to an award of reasonable attorney's fees and costs pursuant to Cal. Civil Code 1942.4(b)(2)."

For the reasons discussed above, the motion to strike the request for attorney's fees at ¶ 64, 21:5-6 is DENIED.

4. ¶ 78, 24:5-8 - "Plaintiffs are also entitled to reasonable attorney's fees and costs pursuant to L.A.M.C. 45.35(B), and Los Angeles County Code 8.52.170(A)."

Defendant argues that the Los Angeles County Code 8.52.040, entitled "General Applicability of Chapter," provides that the Los Angeles County Code Chapter 8.52 "shall be effective on April 1, 2020, and apply to all Landlords and Tenants in Dwelling Units within the unincorporated areas of the County, unless otherwise exempted by State law or the provisions of this Chapter." (Ibid, emphasis added.) Here, however, the Subject Property, located at 518 San Julian Street, Los Angeles, California 90013, is not within an unincorporated area of the County of Los Angeles. Accordingly, Los Angeles County Code § 8.52.170 does not apply and does not support a claim for attorney fees. Instead, Los Angeles Municipal Code applies to properties located within the City of Los Angeles, such as the Subject Property in this case. Plaintiffs' FAC alleges inspections and/or citations that occurred from May 28, 2021, through April 8, 2024. (¶ 17, 6:23-8:14.). However, the anti-tenant harassment ordinance only became effective in 2021, and was amended by Ordinance No. 188,416, with an effective date of December 29, 2024.

Court's analysis:

The above argument relies upon a request for judicial notice which Defendant not properly make of the Court. Moreover, Defendant's argument goes to whether Plaintiffs plead facts sufficient to constitute a cause of action for violation of Los Angeles County Code 8.52.040, which is the function of a demurrer (or motion for judgment on the pleadings), not a motion to strike.

As such, the motion to strike the request for attorney's fees at ¶ 78, 24:5-8 is DENIED.

5. Page 25, line 11 - "5. For attorney's fees pursuant to Plaintiffs' lease agreements and/or Cal. Civil Code 1942.4(b)(2), Los Angeles Municipal Code 45.35(B), and Los Angeles County Code 8.52.170(A)."

For the reasons discussed above, the motion to strike the request for attorney's fees at Page 25, line 11 is DENIED.